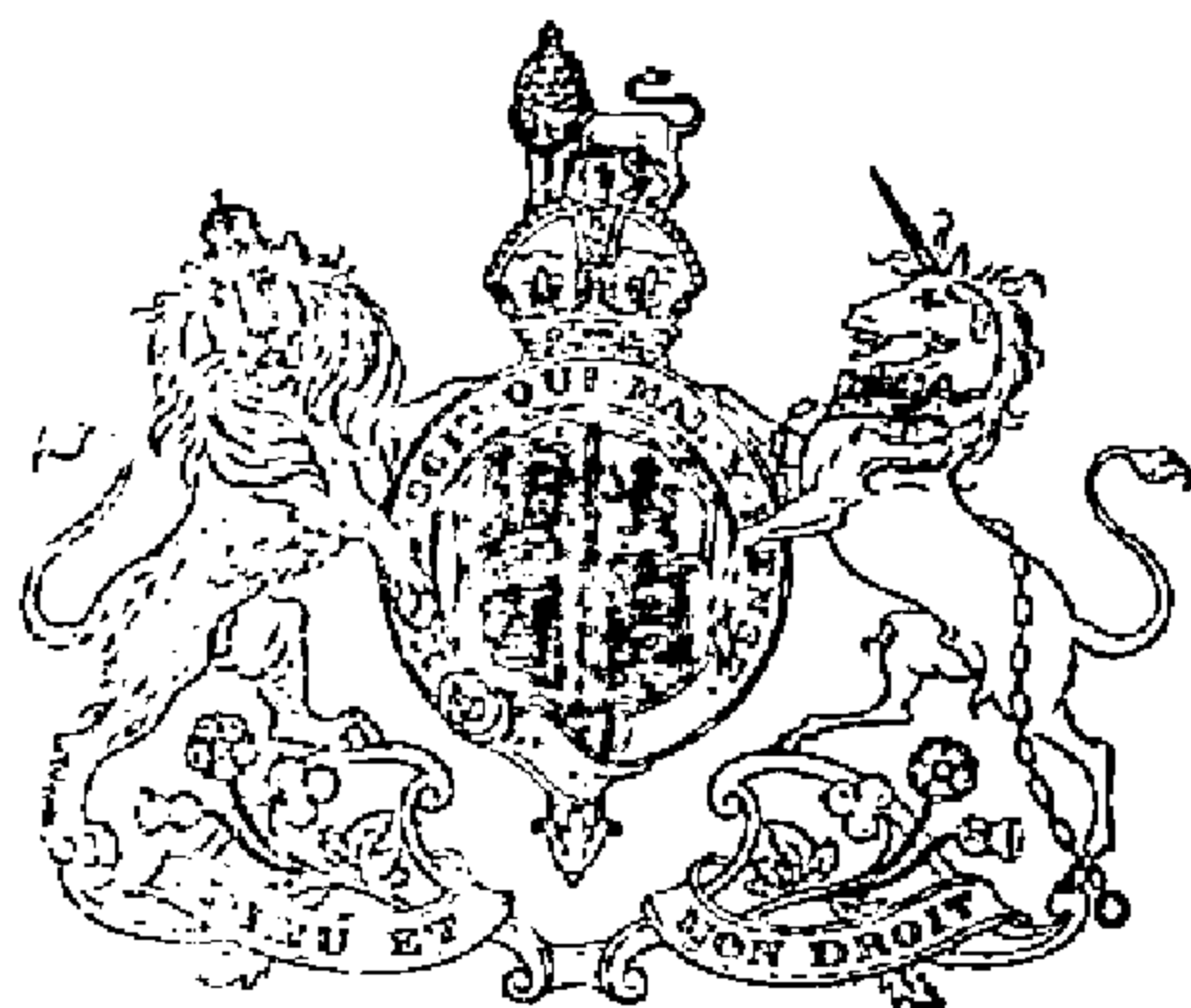




## CHAPTER cix.

An Act for conferring further powers on the North Western Electricity and Power Gas Company and for other purposes. A.D. 1904.  
[22nd July 1904.]

**W**HEREAS by the North Western Electricity and Power Gas Act 1903 (hereinafter called "the Act of 1903") the North Western Electricity and Power Gas Company (hereinafter called "the Company") was incorporated and authorised (amongst other things) to acquire lands and erect thereon generating stations and works and to supply therefrom electrical energy within the area of supply as therein defined and also to manufacture and supply power gas for the purposes of motive power and heating but not of illumination within the same area :

And whereas it is expedient that powers should be granted to the Company for the acquisition of additional lands and the erection thereon of generating stations and works for the carrying out of the general objects of the undertaking of the Company :

And whereas by section 12 of the Act of 1903 it is enacted that nothing in that Act shall authorise the Company to erect any station for generating electrical energy or power gas or manufacturing any residual product elsewhere than on the lands described in the first schedule to that Act :

And whereas with a view to the more convenient supply of electrical energy by the Company it is expedient that the restriction in so far as it relates to the generation of electrical energy be removed :

And whereas Provisional Orders have been granted to undertakers under the Electric Lighting Acts 1882 and 1888 for the lighting of several districts and places within the Company's area



[Ch. cix.] *North Western Electricity and Power* [4 EDW. 7.]  
*Gas Act, 1904.*

A.D. 1904. of supply and the Company are desirous of having power to acquire by agreement such undertakings or any undertakings which may be hereafter authorised by Provisional Orders and to supply electrical energy under such Provisional Orders in and to the districts and places to which the undertakings so transferred relate and it is expedient that the necessary powers should be conferred upon the Company and such undertakers respectively :

And whereas plans describing the lands to be taken or used compulsorily for the purposes of this Act with a book of reference containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands were duly deposited with the clerks of the peace for the counties of Stafford Derby Flint and Denbigh and are in this Act referred to as the deposited plans and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the North Western Electricity and Power Gas Act 1904.

Incorporation of Acts. 2. The following Acts or portions of Acts (as far as they are applicable for the purposes of and are not varied by or inconsistent with the provisions of this Act) are incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts :

The Gasworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers and except any provisions which relate exclusively to the supply of gas for lighting purposes) and the Gasworks Clauses Act 1871 (except sections 11 and 12 and sections 24 to 33 and sections 35 and 36 and the schedules).

New lands for generating stations 3. The Company may subject to the provisions of this Act enter upon take and use the lands or any part or parts thereof



in the counties of Stafford Derby Flint and Denbigh shown on the deposited plans and described in the deposited book of reference and in the Schedule to this Act and may subject to the obligations of the Company under the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 use those lands or any portion thereof for the erection establishment and maintenance of a station or stations for generating electrical energy and manufacturing power gas and converting any materials or residual products arising from or in the process of the generation or manufacture of electrical energy or power gas and for all or any of the purposes of this Act but nothing in this Act shall authorise the Company to erect any station for the manufacture of power gas or any residual products arising therefrom elsewhere than on the lands described in the said schedule Provided that notwithstanding anything in this Act and anything shown on the deposited plans the Company shall not enter upon take or use compulsorily or by agreement the lands or any part thereof numbered 1 2 and 3 on the deposited plans for the parish of Bersham and 3 4 5 6 7 and 8 on the said plans for the parish of Esclusham Below all in the county of Denbigh and 1 2 3 4 and 5 on the said plans for the parish of Fenton in the county of Stafford Section 81 of the schedule to the Electric Lighting (Clauses) Act 1899 shall not apply to any generating station or stations or works erected on any of the lands so described so far as the same relates to the generation of electrical energy.

A.D. 1904.  
 and other  
 purposes.

4. If any omission misstatement or erroneous description shall have been made of any lands or of the owners lessees or occupiers of any lands described in the deposited plans or book of reference it shall be lawful for the Company after giving ten days' notice to the owners lessees and occupiers of the lands affected by such proposed correction to apply to two justices for the correction thereof and if it shall appear to such justices that such omission misstatement or erroneous description arose from mistake they shall certify the same accordingly and they shall in such certificate state the particulars of any such omission and in what respect any such matter shall have been misstated or erroneously described and such certificate shall be deposited with the clerk of the peace for the county within which such lands are situated and shall also be deposited with the clerks of the district councils within which districts such lands are situated and such certificate shall be kept by such clerks of the peace and clerks of the said district councils respectively along with the other documents to which it relates and

Errors and  
 omissions in  
 plans &c.  
 may be cor-  
 rected by  
 two justices.



A.D. 1904. thereupon such plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands in accordance with such certificate.

Persons  
 empowered  
 by Lands  
 Clauses Acts  
 to sell lands  
 may grant  
 easements &c.

5. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required by the Company for the purposes of this Act in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Period for  
 compulsory  
 purchase of  
 lands.

6. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Amendment  
 of section 12  
 of Act of  
 1903.

7. So much of section 12 of the Act of 1903 as prohibits the erection of stations for generating electrical energy elsewhere than on the lands described in the first schedule to that Act is hereby repealed but nothing in this section contained shall authorise the Company to construct any generating station outside the area of supply as defined by the Act of 1903.

Transfer of  
 electric light-  
 ing under-  
 takings to  
 Company.

8.—(1) The Company may by agreement (but not otherwise) acquire from any company or person to whom a Provisional Order under the Electric Lighting Acts 1882 and 1888 shall have been or may be granted relating to a district or place within the Company's area of supply the undertaking authorised by such Provisional Order and the powers rights authorities and privileges of the undertakers under such Provisional Order and any such company or person to whom a Provisional Order has prior to the date of the passing of this Act been granted (whether such Order has been confirmed before or shall be confirmed after such date) may with the approval of the Board of Trade transfer their undertaking powers rights authorities and privileges to the Company on such terms and conditions as may be agreed upon and in the event of the Company so acquiring such undertaking powers rights authorities and privileges they shall be deemed to be the undertakers for all the purposes of the Provisional Order so acquired by them and the provisions of such Provisional Order shall apply to the supply of electrical energy by the Company within the area of supply as defined by such Order Provided that (a) in the case of



A.D. 1904.

any Provisional Order granted prior to the year one thousand nine hundred to any company or person the provisions of the Electric Lighting (Clauses) Act 1899 shall from and after such transfer be deemed to have been incorporated with such Provisional Order and shall control and supersede such of the provisions of that Order as are at variance or inconsistent therewith and (b) none of the provisions of any Provisional Order so acquired by the Company or of the Electric Lighting Acts 1882 and 1888 shall extend to authorise the purchase by any undertakers of any generating station or other works of the Company used or required for the purposes of supplying any other portion of the Company's area of supply.

(2) In the event of any Provisional Order being granted to the Company or in the event of their acquiring any undertaking in accordance with the terms of this section all the provisions of the Electric Lighting Act 1888 and the Electric Lighting (Clauses) Act 1899 shall subject to any modifications of those Acts made by any such Order apply to that undertaking.

(3) Nothing in this section contained shall take away prejudice or affect the rights of consumers to obtain a supply of electrical energy for power purposes upon the terms specified in the Act of 1903.

9. For the protection of the London and North Western Railway Company (hereinafter referred to as "the North Western Company") the following provisions shall apply and have effect:—

For protection of London and North Western Railway Company.

- (1) If at any time the Company acquire the whole or any portion of the lands in the county of Flint described and referred to as (e) and (f) in the Schedule to this Act they shall forthwith give notice to the North Western Company of such acquisition and if within one year after the receipt of such notice the North Western Company by notice in writing to the Company shall require them to do so they shall sell and convey to the North Western Company and the North Western Company may purchase strips of land adjoining the most northerly boundary of the North Western Railway which strips of land shall be specified by the North Western Company in their notice and shall not exceed 20 feet in width and shall extend in length so far as such lands adjoin the railway of the North Western Company :



A.D. 1904.

- (2) The price to be paid by the North Western Company for such strips of land shall be such as may be agreed between the Company and the North Western Company or as failing agreement may be settled by arbitration under the provisions of the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement.

For protec-  
tion of North  
Staffordshire  
Railway  
Company and  
Chatterley  
Whitfield  
Collieries  
Limited.

10. For the protection of the North Staffordshire Railway Company and the Chatterley Whitfield Collieries Limited (in this section referred to as "the railway company" and "the colliery company" respectively) the following provisions unless otherwise agreed in writing between the railway company the colliery company and the Company shall apply and have effect (that is to say) :—

- (1) The Company shall not without the consent of the railway company and the colliery company under their respective common seals enter upon take or use any lands or works of or belonging to the railway company or the colliery company or any lands or buildings held or used by them or either of them in connection with their navigation from the Trent to the Mersey (hereinafter referred to as "the railway company's canal") or with the railways of the railway company or with the works or collieries of the colliery company :

- (2) The Company shall not enter upon take use or in any way interfere with a canal basin situate in the parishes of Tunstall and Wolstanton in the county of Stafford or the canal or cut leading therefrom to the railway company's canal :

- (3) The provisions of section 92 of the North Western Electricity and Power Gas Act 1903 except subsection 7 thereof shall be deemed to be incorporated with this Act so far as regards the railway company and shall be read and have effect in respect of the works by this Act authorised as if the same had been expressly referred to in such section.

For protec-  
tion of Great  
Western  
Railway  
Company.

11. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall apply and have effect :—

- (1) If at any time the Company acquire the whole or any portion of the lands in the county of Denbigh described



and referred to as D in the Schedule to this Act they shall forthwith give notice to the Great Western Company of such acquisition and if within one year after the receipt of such notice the Great Western Company by notice in writing to the Company shall require them to do so they shall sell and convey to the Great Western Company and the Great Western Company may purchase such portion of the said lands not exceeding 35 feet in width as the Great Western Company may require for the future widening of their railway : A.D. 1904.

- (2) The price to be paid by the Great Western Company for such land or portion of land shall be such as may be agreed between the Company and the Great Western Company or as failing agreement may be settled by arbitration under the provisions of the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement.

**12.** For the protection of the Great Central Railway Company and the Wrexham Mold and Connah's Quay Railway Company (in this section respectively referred to as "the Great Central Company" and "the Wrexham Company") the following provisions shall apply and have effect:—

- (1) Notwithstanding anything in this Act contained the Company shall not enter upon take or use under the powers of this Act any lands now or hereafter belonging to the Wrexham Company or any easement over or under the same without the consent in writing of the Wrexham Company under their common seal :
- (2) The provisions of section 82 of the Act of 1903 (For protection of Great Central Railway Company) shall extend and apply for the protection of the Wrexham Company in the execution by the Company of the powers of the Act of 1903 as if the Wrexham Company had been named in the said section 82 :
- (3) If at any time the Company acquire the whole or any portion of the lands in the borough and parish of Glossop described and referred to as G (1) and (2) in the Schedule to this Act they shall forthwith give notice to the Great Central Company of such acquisition and if within two years after the receipt of such notice the Great Central Company by notice in writing

For protec-  
tion of Great  
Central and  
Wrexham  
Mold and  
Connah's  
Quay Rail-  
way Com-  
panies.



A.D. 1904.  
—

delivered or sent by post to the secretary of the Company shall require the Company so to do they shall sell and convey to the Great Central Company subject to the conditions under which the Company may have acquired the same (which condition shall be notified to the Great Central Company by the Company) such portions of the said lands not exceeding 30 feet in width as the Great Central Company may require for the future widening of their railway and the Great Central Company shall pay for the same such proportion of the cost of acquiring the said lands by the Company as the area of the land required by the Great Central Company shall bear to the total area of the said lands acquired by the Company.

Power to  
apply funds.

**13.** The Company may apply for or towards the purposes of this Act to which capital is properly applicable any sum of money which they have already raised or are authorised to raise under the powers of the Act of 1903 as amended by this Act.

Costs of Act.

**14.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.



The SCHEDULE referred to in the foregoing Act.     A.D. 1904.

LANDS FOR GENERATING STATIONS.

(A) Certain lands containing 16 acres 1 rood or thereabouts being the parcel of land numbered 84 on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1899) partly in the parish of Wolstanton and rural district of Wolstanton and partly in the parish of Tunstall and urban district of Tunstall all in the county of Stafford bounded on the west by the North Staffordshire Railway on the north-west by the sidings to the Golden Dale Iron Works on the east partly by the towing path of the Trent and Mersey Canal and partly by a road known as Ravensdale Terrace and on the south partly by a road leading from the Bridge Inn in a westerly direction to a bridge over the said railway and partly by a footpath leading from Ravensdale Terrace to the said towing path of the Trent and Mersey Canal.

(B) Certain lands containing 12 acres 1 rood or thereabouts being the parcels of land numbered 261 and part of 273 on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1900) in the parish of Milton and rural district of Wolstanton and the parcels of land numbered 576 and part of 577 on the said map in the rural parish of Stoke and rural district of Stoke-on-Trent all in the county of Stafford bounded on the north north-west and west by the towing path of the Caldon Canal on the east by the Biddulph Branch of the North Staffordshire Railway on the south-east by the Leek main road on the south by an imaginary line drawn from a point on the towing path of the Caldon Canal  $9\frac{1}{2}$  chains or thereabouts south of the division line between the said parcels of land numbered 261 and 273 on the said map in an easterly direction to the boundary line of the said parcel of land numbered 576 on the said map and on the south-west by the division line between the said parcels of land numbered 576 and 577 on the said map and following the said division line to its termination in the Leek main road at a point  $1\frac{1}{2}$  chains or thereabouts north of the north corner of Abbey Terrace in the said parish of Stoke and rural district of Stoke-on-Trent.

(C) Certain lands containing 8 acres 3 roods or thereabouts being a portion of the parcel of land numbered 998 on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1900) in the rural parish of Stoke and the rural district of Stoke-on-Trent and a portion of the parcel of land numbered 552 on the said map in the parish of Caverswall and rural district of Cheadle all in the county of Stafford bounded on the north-east by the Longton Adderley Green and Bucknall Branch of the North Staffordshire Railway on the north and north-west by a tramway running from the said railway in the direction of



A.D. 1904. the Mossfields Colliery on the south-west and south by a parcel of land numbered 553 on the said map on the south-east by a footpath passing from the division line between the said parcels of land numbered 552 and 553 on the said map in a north-easterly direction to the mineral railway siding of the Mossfields Colliery and on the east by the said railway from the crossing of the said railway over the said footpath in a northerly direction to the said Longton Adderley Green and Bucknall Branch of the North Staffordshire Railway.

(D) Certain lands containing 8 acres or thereabouts being the parcels of land numbered 470 and 477 on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1899) in the parish of Broughton and rural district of Wrexham in the county of Denbigh bounded on the north and north-east by the Croes Newydd West Junction Sidings of the Minera Branch of the Great Western Railway on the east south and south-west by the River Gwenfro and on the west by a road leading from a bridge over the said River Gwenfro to a bridge over the said railway and by the southern approaches of the said bridge.

(E) Certain lands containing 8 acres or thereabouts being the parcel of land numbered 259 on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1899) in the parish and urban district of Connah's Quay in the county of Flint bounded on the south by the London and North Western Railway on the east north and west by a parcel of land numbered 260 on the said map and on the north-east by the Wrexham Mold and Connah's Quay Railway.

(F) Certain lands containing 4 acres or thereabouts being the parcel of land numbered 255 on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1899) in the parish and urban district of Connah's Quay and the parcel of land numbered 4 on the aforesaid map in the parish of Saltney and rural district of Hawarden both in the county of Flint bounded on the north by the Wrexham Mold and Connah's Quay Railway on the west by a stream known as the Wepre Gutter on the south by the London and North Western Railway and on the east by the division line of the adjacent parcel of land numbered 8 on the said map.

(G)—(1) Certain lands containing 12 acres or thereabouts being the parcels of land numbered 55 33 and 56 and portions of 32 35 54 and 53 on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1898) in the parish and borough of Glossop in the county of Derby bounded on the north north-west south-west and south by the county boundary of Derby and Chester on the south-east and east by the Waterside Branch of the Great Central Railway and on the north-east by an imaginary line starting at a point on the said Great Central Railway 1 chain or thereabouts south of the division line between the parcels of land numbered 52 and 53 on the said map and drawn in a north-westerly direction to a point on the said county boundary half a chain or thereabouts north of the point where the said boundary is crossed by the division line between the parcels of land numbered 31 and 32 on the said map:



[4 Edw. 7.]    *North Western Electricity and Power*    [Ch. cix.]  
*Gas Act, 1904.*

(2) A strip of land containing 1 rood or thereabouts and numbered 80 on the said map in the parish and borough of Glossop aforesaid bounded on the north and north-east by an imaginary line drawn in a south-easterly direction from a point on the said Great Central Railway chain or thereabouts north-west of the point where the aforesaid county boundary crosses the said railway to a point on the Woolley Bridge Road  $3\frac{1}{2}$  chains or thereabouts south-east of the division line between the parcels of land numbered 57 and 80 on the said map on the east and south-east by the Woolley Bridge Road and on the south and south-west by the said boundary and on the west and north-west by the said Waterside Branch of the Great Central Railway.

A.D. 1904.

---

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PICOTT, Esq., C.B., the King's Printer of Acts of Parliament.

---

And to be purchased, either directly or through any Bookseller, from  
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or  
OLIVER AND BOYD, EDINBURGH; or  
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.